

21STCV37556 21STCV37556

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Case Number: 21STCV37556 Hearing Date: September 9, 2026 Dept: F43

Dept. F43

Hearing Date: 09-09-26

Case # 21STCV37556, Mirshojae,
et al. v. 5975-5999 Topanga Canyon Blvd, LLC, et al.

Trial Date: None set.

MOTION FOR AN
ASSIGNMENT ORDER AND RESTRAINING ORDER

MOVING PARTIES: Plaintiff Alireza Mirshojae, as executor of
the estate of Plaintiff/Cross-Defendant Hamid Reza Mirshojae, and Plaintiff
Alireza Mirshojae, as a substitute for Plaintiff/Cross-Defendant Woodland Hills
Medical Clinic II, Inc.

RESPONDING PARTIES: Defendants 5975-5999 Topanga Canyon Blvd, LLC
and Ahang Mirshojae

RELIEF REQUESTED

Order assigning to plaintiffs the right of
defendant/judgment debtor 5975-5999 Topanga Canyon Blvd, LLC to receive rent
and other sums due or to become due from its tenants, including Emulate
Treatment Center, Warner Plaza Dental Group, and Woodland Hills Medical Clinic
II, Inc., under their respective leases of the real property commonly known as
5975-5999 Topanga Canyon Blvd., Woodland Hills, California 91367, to the extent

necessary to satisfy plaintiffs' attorney fee award issued on July 23, 2025 and accrued interest and post-award costs.

Order restraining defendant 5975-5999 Topanga and its members, managers, servants, agents, employees, and attorneys, and all persons in active concert or participation with Topanga, from encumbering, assigning, disposing of, collecting, or spending the rents and rights to payment sought to be assigned.

RULING: Assignment order is granted. Restraining order is granted.

SUMMARY OF ACTION

On October 12, 2021, plaintiffs and cross-defendants Hamid Reza Mirshojae (Hamid) and Woodland Hills Medical Clinic II, Inc. (the Clinic) filed this breach of contract action, alleging that defendants and cross-complainants Ahang Zarin Mirshojae (Ahang)[1] and 5975-5999 Topanga Canyon Blvd, LLC breached a 2017 settlement agreement. On February 21, 2023, defendants filed a cross-complaint against Hamid and the Clinic, alleging that Hamid and counsel fraudulently induced Ahang into entering the 2017 settlement agreement.

On November 17, 2023, defendants made a section 998 offer to compromise, which Hamid accepted on December 6, 2023. Ahang agreed to pay \$270,000 and reasonable attorney's fees and costs up to the date of the offer. On February 23, 2024, Ahang's son, Jason Mirshojae, paid the \$270,000 after Hamid sued Ahang for fraudulent transfer.

On July 10, 2024, Plaintiffs moved for \$619,675 in attorney fees. On August 7, 2024, the court granted the motion is the reduced amount of \$525,895.60, payable within 60 days of the order. On October 10, 2024, Ahang paid the \$525,895.60 in attorney fees. (Notice of Payment of Section 998 Offer and Attorney Fee Award - filed 4/22/2025.)

Hamid was murdered on August 28, 2024.

Alireza Mirshojae (Alireza) was subsequently appointed as Hamid's successor in interest and now executor of Hamid's estate.

On April 16, 2025, Alireza moved for an

additional \$230,372.50 in attorney's fees based on the accepted Section 998 offer to compromise filed on December 13, 2023, which were incurred while attempting to enforce the agreement. Defendants did not oppose the motion. On July 23, 2025, the court granted the motion, awarded Plaintiffs \$224,462.70 in attorney fees.

According to Plaintiffs, only \$20,000 has been paid toward the \$224,462.70 attorney fee award.

On July 23, 2026, Alireza moved for an assignment order, assigning to Plaintiffs defendant 5975-5999 Topanga's right to receive rent and other sums due or to become due from its tenants, including Emulate Treatment Center, Warner Plaza Dental Group, and Woodland Hills Medical Clinic II, Inc., under their respective leases of the real property commonly known as 5975-5999 Topanga Canyon Blvd., Woodland Hills, California 91367, to the extent necessary to satisfy plaintiffs' attorney fee award issued on July 23, 2025, accrued interest, and post-award costs.

Alireza also seeks an order restraining defendant 5975-5999 Topanga and its members, managers, servants, agents, employees, and attorneys, and all persons in active concert or participation with Topanga, from encumbering, assigning, disposing of, collecting, or spending the rents and rights to payment sought to be assigned.

Defendants filed a late opposition on August 27, 2026.[2] On September 1, 2026, Plaintiffs filed a reply.

ANALYSIS

A. Assigning

Interests and Imposing Restraining Orders on Assigned Interests

Code of Civil Procedure section 708.510, subdivision

(a) states: “Except as otherwise provided by law, upon application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor or to a receiver appointed pursuant to Article 7 (commencing with Section 708.610) all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments, including but not limited to the following types of payments: (1) Wages due

from the federal government that are not subject to withholding under an earnings withholding order; (2) Rents; (3) Commissions; (4) Royalties; (5) Payments due from a patent or copyright; and (6) Insurance policy loan value.

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A plaintiff who holds an unsatisfied attorney fee award may move pursuant to California Code of Civil Procedure section 708.510 for a court assignment order because an attorney fee award constitutes a “money judgment” under the Enforcement of Judgments Law. (Code Civ. Proc., § 680.230; *Alioto Fish Co. v. Alioto* (1994) 27 Cal.App.4th 1669, 1686-1687.) Furthermore, rents are expressly listed as an assignable right to payment under Section 708.510(a)(2). (See *In re Marriage of Strong* (2025) 116 Cal.App.5th 304, 307-309 [reaffirming Section 708.510(a)’s “including but not limited to” language renders the enumerated list of assignable payments non-exclusive].)

“[I]n determining whether to order an assignment or the amount of an assignment pursuant to subdivision (a), the court may take into consideration all relevant factors, including . . . (1) The reasonable requirements of a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor; (2) Payments the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments, including earnings assignment orders for support; (3) The amount remaining due on the money judgment; [and] (4) The amount being or to be received in satisfaction of the right to payment that may be assigned.” (Code Civ. Proc., § 708.510, subd. (c).)

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The “assignment order” must include a court order which assigns a right to payment outright not an order directing the judgment debtor to do so. The court may also issue “an order restraining the judgment debtor from assigning or otherwise disposing of the right to payment that is sought to be assigned” if the judgment creditor makes “a showing of need for the order.” (Code Civ. Proc., § 708.520, subdivisions (a), (b).)

The court issued its order awarding Plaintiff \$224,462.70

in attorney fees on July 23, 2025. (Declaration of Christopher D. Beatty ¶ 5, Exh. C.) Plaintiffs have engaged in several unsuccessful enforcement procedures via writs of execution and a bank levy but have only collected \$20,000. (Beatty Decl. ¶ 6.)

The total amount now due is \$224,462.70, less \$20,000, plus \$80 in writ issuance fees, plus interest of \$61.49 per day from the date the award was issued to the date the \$20,000 was paid, plus interest of \$56.01 from the date of the \$20,000 payment through present, and \$65,266.50 in post-judgment costs incurred between July 23, 2025 and July 23, 2026. (7/24/2026 Memorandum of Costs after Judgment; Beatty Decl. ¶ 6.) The court cannot state a proper interest amount because the parties do not state when the \$20,000 payment was made.

According to Plaintiffs, defendant Topanga owns commercial real property at 5975-5999 Topanga Canyon Blvd., Woodland Hills, CA 91367 and leases the property to several tenants, including Emulate Treatment Center, Warner Plaza Dental Group, and plaintiff Woodland Hills Medical Clinic II, Inc. (Beatty Decl. ¶ 8(a)-(c).) Through the leases, Topanga has the right to monthly rent and other sums. (Id.

¶ 8.) These rights have not been previously assigned, Topanga is not entitled to any statutory exemption in the rents, and no portion of the rents is exempt from enforcement of the money judgment. (Id. ¶¶ 9-10.)

Defendants assert Plaintiffs' motion lacks evidentiary support concerning the three tenants.

But Defendants simultaneously admit each tenant pays \$10,000 per month and that eight months of payments would satisfy the total judgment. (Opposition at pp. 4:18-5:5.) At the same time, Defendants do not present any evidence to oppose Plaintiffs' assertions concerning the three tenants, including plaintiff Woodland Hills Medical Clinic II, Inc., or defendant Topanga's right to rent.

However, Defendants do note that the rental income is the sole source from which Topanga meets its recurring obligations, including property taxes, insurance, utilities, maintenance, and repairs owed to its tenants under their leases. (Opposition at p. 4:20-22.) But Defendants provide no evidentiary support for this assertion or for the court to determine whether to assign all or part of Topanga's rights to rent payments to Plaintiffs.

Thus, based on the moving papers and the Beatty declaration, the court finds that Plaintiffs are entitled to Defendants' right to receive rent and other sums due or to become due from its tenants, including Emulate Treatment Center, Warner Plaza Dental Group, and Woodland Hills Medical Clinic II, Inc., under their respective leases of the real property commonly known as 5975-5999 Topanga Canyon Blvd., Woodland Hills, California 91367 in order to satisfy the July 23, 2025, attorney fee award.

As to the restraining order, Plaintiffs assert that a restraining order is necessary to support the assignment order because defendant Topanga has a history of failing to comply unless compelled by the court. (Beatty Decl., Exhs. B-C [not complying with a settlement until Plaintiffs sued for fraudulent transfer, paying attorney fees promised by settlement agreement after motions were filed].) Furthermore, Plaintiffs claim ordinary collection efforts have been unsuccessful because Topanga has closed several of its bank accounts. (Reply at p. 5:5-11.)

Although the closing of bank accounts does not necessarily amount to evasive conduct, the court does find that Plaintiffs have established good cause for issuing an assignment order and a restraining order prohibiting defendant Topanga and its members, managers, servants, agents, employees, and attorneys, and all persons in active concert or participation with Topanga, from encumbering, assigning, disposing of, collecting, or spending the rents and rights to the rent payments. The court issued its July 23, 2025, ruling over one year ago, and Defendants have only paid \$20,000. Moreover, the attorney fees which were the subject of the July 23, 2025, order resulted from Plaintiffs' effort to compel Defendants to comply with the parties' settlement agreement obligations to pay attorney fees.

Defendants insist the court should narrow Plaintiffs' rent payments request and require Plaintiffs to provide a \$100,000 undertaking pursuant to Code Civil Procedure section 708.520, subdivision (b). "The court, in its discretion, may require the judgment creditor to provide an undertaking." (Code Civ. Proc., § 708.520, subd. (b).) Defendants fail to make even a minimal showing of "need" to support the proposed \$100,000 undertaking through estimated costs or otherwise.

Therefore, the court grants Plaintiff's motion for an

assignment order and a restraining order.

The court orders that all rent and other sums due or to become due to 5975-5999 Topanga Canyon Blvd, LLC from its tenants, including Emulate Treatment Center, Warner Plaza Dental Group, and Woodland Hills Medical Clinic II, Inc., under their respective leases of the real property commonly known as 5975-5999 Topanga Canyon Blvd., Woodland Hills, California 91367, be assigned to plaintiffs Alireza Mirshojae, as executor of the estate of Plaintiff/Cross-Defendant Hamid Reza Mirshojae, and Plaintiff Alireza Mirshojae, as a substitute for Plaintiff/Cross-Defendant Woodland Hills Medical Clinic II, Inc. until the attorney fee award judgment is satisfied in full or upon further order of the court.

The court bars defendant 5975-5999 Topanga and its members, managers, servants, agents, employees, and attorneys, and all persons in active concert or participation with Topanga, from encumbering, assigning, disposing of, collecting, or spending the rents and rights to payment sought to be assigned to defendant Topanga.

CONCLUSION and ORDER

Motion for assignment order and restraining order is granted as described above in Section A.

Plaintiffs to give notice.

[1] The court refers to the Mirshojae parties by their first names in order to avoid confusion.

[2] Oppositions must be filed and served no later than nine (9) court days before the hearing date. (Code Civ. Proc., § 1005, subd.

(b).) Due to the Labor Day court holiday, the opposition was due on August 26, 2026.